

VCU330916 Pursley, Richard vs. FCA US LLC

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-08-31

Motion: (1) Defendant's Demurrer to Amended Complaint; (2) Defendant's Motion to Strike Portions of Complaint (3) Plaintiff's Motion to Compel Initial Disclosures and Sanctions

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Re: Pursley, Richard vs. FCA US LLC

Case No.: VCU330916

Date: August 31, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: (1) Defendant's Demurrer to Amended Complaint; (2) Defendant's Motion to Strike Portions of Complaint (3) Plaintiff's Motion to Compel Initial Disclosures and Sanctions

Tentative Ruling: (1) To overrule the demurrer to the first, second and third causes of action; to sustain the demurrer without leave to amend as to the fourth cause of action; to sustain the demurrer with leave to amend as to the sixth cause of action; Plaintiff shall have ten (10) days to file an amended complaint as to this cause of action; (2) To find the motion to strike moot; (3) To find the motion to compel moot via the service of initial disclosures; to impose the statutory sanction of \$2,500 against Defendant's counsel for failure to timely provide initial disclosures.

Facts Common to (1) and (2)

Facts

The first amended complaint in this matter alleges causes of action against Defendant FCA for violations of Song Beverly and fraudulent concealment, and against Defendant Sonora for negligent repair.

Defendant FCA demurs to each cause of action against it, arguing the statute of limitations bars the claims and that Plaintiff has otherwise failed to allege sufficient facts to constitute a cause of action. Defendant further seeks to strike the references to punitive damages.

Plaintiff alleges that on or about September 20, 2019, Plaintiff entered into a warranty contract with Defendant FCA regarding a 2019 Jeep Cherokee, vehicle identification number 1C4PJMBX4KD216796 (hereafter "Subject Vehicle") (FAC ¶7.) Plaintiff

alleges the warranty contract contained warranties including bumper-bumper warranty, powertrain warranty, emission warranty, and a California Emission Warranty. (FAC ¶8.) Further, that the Vehicle was purchased from FCA's authorized retail dealership. (FAC ¶9.)

Plaintiff alleges review Defendant FCA's marketing and advertising materials, viewed FCA's vehicle-specific window sticker, and taking the Vehicle for a test drive, but that at no point prior to purchase was Plaintiff advised the Vehicle and its 9-speed automatic transmission were defective. (FAC ¶10.)

Plaintiff alleges further that:

"Around August 4, 2021, Plaintiff presented the Vehicle to Defendant FCA's authorized repair facility with complaints including, inter alia, an abnormal noise when going over bumps. Defendant's technician inspected the Vehicle, verified Plaintiff's complaints, and performed repairs including replacing the front struts. At pick up, Defendant's repair facility represented that the Vehicle had been repaired and was working as designed." (FAC ¶14.)

Further, that on August 27, 2021 and February 10, 2025, Plaintiff again presented the Vehicle for repair as to an abnormal clunk noise, which was repaired, and as to poor driving characteristics due to a warped engine block. (FAC ¶¶15, 16.)

Plaintiff alleges that "Plaintiff had no way of uncovering Defendant's deception with respect to the defects given that Defendant performed various diagnostics and/or undertook repairs and claimed that nothing was wrong with the Subject Vehicle or that the Vehicle had been repaired." (FAC ¶17.)

Further, that "Plaintiff is informed, believes, and thereon alleges that Defendant FCA knew since prior to Plaintiff purchasing the Subject Vehicle, that the 2019 Jeep Cherokee vehicles equipped with a 9-speed transmission are defective, contained one or more defect(s) to the transmission which may result in hesitation on acceleration, loss of power, hard and/or harsh shifts, and/or jerking (the "Transmission Defect")" (FAC ¶26.) Further, that the Transmission Defect is a safety concern. (FAC ¶28.)

Additionally, that FCA had exclusive knowledge of the Transmission Defect through sources not available to consumers including "pre-production and post production testing data; early consumer complaints about the Transmission Defect made directly to Defendant FCA and its network of dealers; aggregate warranty data compiled from Defendant FCA's network of dealers; testing conducted by Defendant FCA in response to these complaints; as well as warranty repair and part replacements data" (FAC ¶¶28, 29, 32-36.)

As to the statute of limitations, Plaintiff alleges:

"47. To the extent there are any statutes of limitation applicable to Plaintiff's claims- including, without limitation, the express warranty, implied warranty, and negligent repair – the running of the limitation periods have been tolled by, inter alia, the following doctrines or rules: equitable tolling, the discovery rule, the fraudulent concealment rules, equitable estoppel, the repair rule, and/or class action tolling (e.g., the American Pipe rule).

48. Plaintiff did not discover Defendant's wrongful conduct alleged herein until shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following Defendant FCA's unsuccessful attempts to repair them. However, Defendant FCA failed to provide restitution pursuant to the Song – Beverly Consumer Warranty Act." (FAC ¶¶47, 48.)

As to the concealment cause of action, Plaintiff further alleges that "Defendant FCA committed fraud by allowing the Subject Vehicle to be sold to Plaintiff without disclosing that the Subject Vehicle and its transmission were defective which can cause hesitation on acceleration, loss of power, hard and/or harsh shifts, and/or jerking. It can also result in a total loss of power and/or failure to accelerate while driving, significantly impair driver control." (FAC ¶75.)

Plaintiff alleges FCA owed Plaintiff a duty to disclose the defect because FCA acquired such knowledge through sources not available to consumers, FCA was in a superior position of knowledge, and "Plaintiff could not reasonably have been expected to learn or discover of the Vehicle's Transmission Defect and its potential consequences until well after Plaintiff purchased the Vehicle." (FAC ¶77.)

Plaintiff seeks punitive damages as to the fraud cause of action.

Defendant FCA demurs to each cause of action based on the statute of limitations, as well as to the concealment cause of action on a number of other grounds and seeks to strike the punitive damages claim.

(1) Authority and Analysis - Demurrer

The purpose of a demurrer is to test whether a complaint "states facts sufficient to constitute a cause of action upon which relief may be based." (Young v. Gannon (2002) 97 Cal.App.4th 209, 220. To state a cause of action, a plaintiff must allege facts to support his or her claims, and it is improper and insufficient for a plaintiff to simply plead general conclusions. (Careau v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 11371, 1390.) The complaint must contain facts sufficient to establish every element of that cause of action, and thus a court should sustain the demurrer if "the defendants negate any essential element of a particular cause of action." (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 879-80)

To determine whether the complaint states facts sufficient to constitute a cause of action, the trial court may consider all material facts pleaded in the complaint and those that arise by reasonable implication therefrom; it may not consider contentions, deductions, or conclusion of fact or law (Moore v. Conliffe (1994) 7 Cal.4th 634, 638.)

It is well-settled that all well-pled material facts in the complaint are assumed to be true for the purpose of the demurrer. (C & H Foods v. Hartford Ins. Co. (1984) 163 Cal.App.3d 1055, 1062) But "doubt in the complaint may be resolved against plaintiff and facts not alleged are presumed not to exist. (Id.)

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) No other extrinsic evidence can be considered (i.e., no "speaking demurrers"). (Ion Equip. Corp. v. Nelson (1980) 110 Cal.App.3d 868, 881.)

A demurrer cannot be sustained without leave to amend where it appears that the facts alleged establish a cause of action under any possible legal theory or it is reasonably possible that the plaintiff can amend the complaint to allege any cause of action. (Canton Poultry & Deli, Inc v. Stockwell, Harris, Widom, and Woolverton (2003) 109 Cal.App.4th 1219, 1226.)

Committee for Green Foothills v. Santa Clara County Bd. Of Supervisors (2010) 48 Cal.4th 32, 42 states, " "A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar . . . to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. [Citation.]" [Citation.]" [Citation.]"

First, Second and Third Causes of Action – Violations of Civil Code section 1793.2

Krieger v. Nick Alexander Imports, Inc. (1991) 234 Cal.App.3d 205, 214-215 notes that a claim for breach of express warranty under the Song-Beverly Act is subject to the four-year statute of limitations set forth in Com. Code section 2725.

Defendant argues that this limitations period commences upon purchase of the Subject Vehicle.

However, the Court's understanding is that claims under section 1793.2 accrue when a manufacturer or its representative fails to meet its requirements under the Song-Beverly Act, not upon the purchase of the Subject Vehicle. Here, Plaintiff alleges presentation of the Vehicle August 4, 2021 and August 27, 2021, alleged to be two repair attempts. As such, the Court finds the statute of limitations as to these causes of action runs from August 27, 2021.

The complaint in this matter was initially filed June 27, 2025, which is within the four year statute of limitations.

As such, the Court overrules the demurrer to the first, second and third causes of action.

Fourth Cause of Action – Breach of Implied Warranty

"The Song-Beverly Act does not include its own statute of limitations. [Citation.] California courts have held that the statute of limitations for an action for breach of warranty under the Song-Beverly Act is governed by the same statute that governs the statute of limitations for warranties arising under the Uniform Commercial Code." (Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1305-1306.)

Implied warranty claims are subject to a four-year statute of limitations under the California UCC. (Comm. Code, § 2725(1).)

In contrast to the above, a breach of implied warranty claim accrues upon purchase of the Subject Vehicle and delayed discovery does not apply to implied warranty claims (Nguyen v. Nissan North America, Inc. (2020) 487 F.Supp.3d 845, 854 n.3.) The Court notes further notes Cardinal Health 301, Inc. v. Tyco Electronics Corp. (2008) 169 Cal.App.4th 116, 132 agrees, noting that delayed discovery does not apply to implied warranty claims under Commercial Code section 2725. "In the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery." (Mexia v. Rinker Boat Co. (2009) 174 Cal.App.4th 1297, 1305.)

Therefore, the Court sustains the demurrer to the fourth cause of action without leave to amend, finding that the amended complaint alleges the Vehicle was purchased September 20, 2019 and the initial complaint was filed June 27, 2025.

Sixth Cause of Action - Concealment

A three-year limitations period applies to fraud claims. (Code Civ. Proc. § 338, subd. (d).)

Under the delayed discovery rule, a cause of action accrues at the time when the cause of action is complete with all its elements. (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 806-807.) The test for when the statute of limitations on a claim starts to run under the delayed discovery rule is "whether the plaintiff has information of circumstances sufficient to put a reasonable person on inquiry, or has the opportunity to obtain knowledge from sources open to his or her investigation." (McGee v. Weinberg (1979) 97 Cal.App.3d 798, 803.)

"In order to invoke this special defense to the statute of limitations, the plaintiff must specifically plead facts which show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence." (Saliter v. Pierce Brothers Mortuaries (1978) 81 Cal.App.3d 292, 300.) "The burden is on the plaintiff to show diligence, and conclusory allegations will not withstand demurrer." (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1319 (internal quotations omitted).

Further, "[i]t has long been established that the defendant's fraud in concealing a cause of action against him tolls the applicable statute of limitations, but only for that period during which the claim is undiscovered by plaintiff or until such time as plaintiff, by the exercise of reasonable diligence, should have discovered it. [Citation.] Like the discovery rule, the rule of fraudulent concealment is an equitable principle designed to effect substantial justice between the parties; its rationale is that the culpable defendant should be estopped from profiting by his own wrong to the extent that it hindered an 'otherwise diligent' plaintiff in discovering his cause of action. [Citations.]" (Bernson v. Browning-Ferris Indus. (1994) 7 Cal.4th 926, 931.)

Like with the breach of express warranty claims, the Court does not find the statute of limitations started until after purchase of the Vehicle and after some presentation of the Vehicle to an authorized dealer based on the alleged defect.

Here, the fraud cause of action focuses on the Transmission Defect and FCA's exclusive knowledge thereof.

The presentation in August 2021, however, does not discuss the Transmission Defect but instead alleges a "abnormal noise going over bumps" related to front struts and "abnormal clunk noise" related to a front lower ball joint.

Additionally, the February 10, 2025 presentation involved "poor driving characteristics" related to the warped engine block.

The Court agrees, therefore, that the complaint fails to allege when the Transmission Defect was discovered, or should have been discovered via reasonable diligence.

Therefore, the Court sustains the demurrer with leave to amend as to this issue. Therefore, the Court will not rule on the other arguments regarding other issues of specificity, lack of duty, transactional relationship and other arguments in support of the demurrer.

A demurrer cannot be sustained without leave to amend where it appears that the facts alleged establish a cause of action under any possible legal theory or it is reasonably possible that the plaintiff can amend the complaint to allege any cause of action. (Canton Poultry & Deli, Inc v. Stockwell, Harris, Widom, and Woolverton (2003) 109 Cal.App.4th 1219, 1226.)

Therefore, the Court orders an amended complaint as to the sixth cause of action filed no later than ten (10) days from the date of this hearing.

(2) Authority and Analysis – Motion to Strike

As noted above, FCA seeks to strike the references to punitive damages sought under the sixth cause of action for concealment. As the Court has sustained the demurrer to this cause of action with leave to amend, the Court finds the motion to strike moot.

(3) Plaintiff's Motion to Compel Initial Disclosures and Sanctions

Facts

Plaintiff states that the complaint was initially filed in this matter June 27, 2025 and that Defendant FCA served a demurrer to this complaint December 17, 2025.

Plaintiff further states that sixty days from service of the demurrer was February 15, 2026, but that FCA, as of the filing of this motion on June 15, 2026, has failed to provide mandatory initial disclosures and documents pursuant to Code of Civil

Procedure section 871.26(b).

In response, FCA states that it initially filed the demurrer December 17, 2025 with an understanding that this case would be transferred and the demurrer would need to be refiled in the proper county. Additionally, that it refiled the demurrer June 2, 2026.

Further on August 14, 2026, FCA served its initial disclosures and non-confidential documents and that "In June and July 2025, FCA handling attorney Sasha Bassi dealt with health concerns which caused her to miss time from work and preceded her departure from our law firm on July 31, 2026" in support of good cause to avoid sanctions.

Authority and Analysis

This mandatory disclosure law, enacted January 1, 2025 applies to "civil action[s] seeking restitution or replacement of a motor vehicle pursuant to Section 871.20." This Song Beverly action, therefore, is within the scope of this law.

"Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (Code Civ. Proc., § 871.26, subd. (b).)

Subsection (h), applicable to Defendant Ford, requires:

(h) The defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b):

(1) Copy of or access to a version of the owner's manual for a motor vehicle of the same make, model, and year.

(2) Any warranties issued in conjunction with the sale of the motor vehicle.

(3) Sample brochures published for the motor vehicle.

(4) The motor vehicle's original invoice, if any, to the selling dealer.

(5) Sales or lease agreement, if the manufacturer is in possession.

(6) Motor vehicle information reports, including build documentation, component information, and delivery details.

(7) Entire warranty transaction history for the motor vehicle.

(8) Listing of required field actions applicable to the motor vehicle.

(9) Published technical service bulletins ("TSBs") for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.

(10) Published information service bulletins ("ISBs") for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.

(11) Records relating to communications between the manufacturer or dealership and the owner or lessee of the motor vehicle, including those related to repair orders or claims involving the motor vehicle.

(12) Warranty policies and procedure manuals.

(13) Service manuals reasonably related to the nonconformities pertaining to the motor vehicle.

(14) If a pre-suit restitution or replacement request is made, all call recordings of pre-suit communications with the consumer available at the time of service of the complaint.

(15) If a pre-suit restitution or replacement request is made, the manufacturer's written statement of policies and procedures used to evaluate customer requests for restitution or replacement pursuant to "Lemon Law" claims.

(16) If a pre-suit restitution or replacement request is made, any nonprivileged, prelitigation evaluation.

(17) Any warranty extensions or modifications issued by the manufacturer on the motor vehicle."

Here, Plaintiff represents that none of the requisite disclosures have been timely made. In response, FCA argues the filing of the initial demurrer did not trigger this deadline and instead the refiling of the demurrer in this County starts the clock on disclosure. The Court does not interpret the statute in this manner and notes that the initial 60 day period expired before the filing of the amended complaint.

Further, FCA argues that Plaintiff's own failure to perform under section 871.26 precludes its use here. However, FCA made no motion to enforce the obligations under section 871.26.

In any event, the Court cannot order disclosure where disclosure took place on August 14, 2026.

As to sanctions, subsection (j) states:

"(j) Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows:

(1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b)..."

The Court does not find good cause here regarding the failure to serve the required initial disclosures based on the December 17, 2026 demurrer filing. The amended complaint was filed April 28, 2026, well after 60 days from December 17, 2026. The Court finds the remaining sequence of events irrelevant as to Defendant's failure to timely provide the required disclosures. As such, the Court imposes the sanction of \$2,500 on Defendant's attorney, payable within 15 business days of this ruling.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.